

**MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF COUNSEL FOR PLAINTIFF
AND ITS ACCOMPANYING EXHIBITS
FILED BY: DISCOVER BANK**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment based on a written agreement between the parties, under Section 664.6 of the CCP.

Plaintiff's proof of service reflects mail service on Defendant.

However, Defendant was never served with process, and there is no evidence corroborating the fact that the mailing address is indeed that of the Defendant.

Thus, mail service, in the instant matter, is insufficient.

Disposition

Motion will be continued to 8/18/26, 9am.

Plaintiff to notify Defendant properly.

8. 9:00 AM CASE NUMBER: L25-01776

CASE NAME: CAPITAL ONE N.A. VS. VANESSA JACKSON

***HEARING ON MOTION IN RE: FOR AN ORDER THAT MATTERS IN REQ FOR ADMIS OF TRU OF
FACTS BE DEEM ADMIT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall submit the order.

9. 9:00 AM CASE NUMBER: L25-05007
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND
ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where Defendant was served with process and acknowledged service.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule,